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OCBA Civility Guidelines

"The American legal profession exists to help people resolve disputes cheaply, swiftly, fairly, and justly. Incivility between counsel is sand in the gears."
(*Karton v. Ari Design & Construction, Inc.* (2021) 61 Cal.App.5th 734, 747.)

TENTATIVE RULINGS
Judge Kimberly Knill, Dept. C31

- **The court encourages remote appearances to save time, reduce costs, and increase public safety.** Go to www.occourts.org/media-relations/civil.html and click the blue box, "Click here to appear/check-in for Civil Small Claims/Limited/Unlimited/Complex remote proceedings." Navigate to Department C31 Judge Kimberly Knill.
- All hearings are open to the public.
- If you desire a transcript of the proceedings, you **must** provide your court reporter (unless you have a fee waiver and request a court reporter in advance).
- Call the other side. If **everyone** submits to the tentative ruling, call the clerk at **657-622-5231**. Otherwise, the court may rule differently at the hearing. (See *Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

No filming, broadcasting, photography, or electronic recording of the video session is permitted pursuant to California Rules of Court, rule 1.150, and Orange County Superior Court rule 180.

HEARING DATE: Friday, 5/15/2026 10:00 AM

#	Case Name	Tentative
1	Marriott Hotel Services, LLC vs. RingCentral, Inc. 30-2024-01429620-CU-BC-CJC	Application to Appear as Counsel Pro Hac Vice The Application of Kristen McMullen to Appear as Counsel Pro Hac Vice for defendant RingCentral, Inc. is GRANTED. Applicant to give notice.
2	Estrada vs. Segade 30-2022-01292722-CU-PA-CJC	Motion to be Relieved as Counsel of Record The motion of attorney Sasha Tymkowicz to be relieved as counsel of record for Plaintiff Monica Margarita Estrada is DENIED. (Code Civ. Proc. § 284, Cal. Rules of Court, rule 3.1362.)

		Counsel has failed to demonstrate service. Neither the declaration nor proof of service filed in support of the Motion attests to the manner of service. Clerk to give notice.
3	Pellisier vs. Gertner 30-2025-01491927-CU-PN-CJC	Motion to Consolidate Cases Plaintiff's Motion to Consolidate is GRANTED. The following cases are consolidated for all purposes: (1) Case No. 2025-01491875, and (2) Case No. 2025-01491927. Plaintiff has withdrawn his request as to Case No. 2026-01537886. All future filings are to be submitted to the lower case number but are to reference both case numbers. Plaintiff to give notice.
4	Romero vs. Duong 30-2024-01448857-CU-PA-CJC	Motion for Leave to File Amended Answer Defendant Benito Lopez Diaz's unopposed Motion for Leave to File Amended Answer is GRANTED. Defendant is ORDERED to file the amended answer within 5 days. Defendant to give notice.
5	Marfone vs. Harvey & Company, LLC 30-2025-01529049-CU-BC-CJC	Motion to Compel Arbitration and Stay or Dismiss the Action Pending Arbitration The Motion to Compel Arbitration by defendants Harvey & Company, LLC; Harvey Equity Partners, LLC; HPI Partners, LLC; and David Harvey is GRANTED. The complaint filed by plaintiffs Vincent Marfone, Davis Matthews, and Luke Meyers alleges eleven causes of action arising from their claims that defendants Harvey & Company, LLC ("H&C"), Harvey Equity Partners, LLC ("HEP"), HPI Partners, LLC ("HPI"), and David Harvey breached the Harvey Equity Partners LLC, Amended and Restated Operating Agreement ("HEP Agreement") and the Limited Liability Company Agreement of HPI Partners LLC ("HPI Agreement"), and violated various sections of the Labor Code. Defendants' objections nos. 5, 11-14 are SUSTAINED. The remaining objections are OVERRULED.

		Existence of Binding Agreement: Defendants present evidence Plaintiffs signed one arbitration agreement and agreed to be bound by two others. As part of their employment with H&C, each plaintiff signed the Employment Arbitration Agreement. (Munakata Decl., ¶¶ 4-6, Exs. A-C.) Further, in their complaint, Plaintiffs allege “Plaintiffs and Defendants were parties to, and/or governed by” the HEP Agreement and HPI Agreement, both of which Defendants breached. (Compl., ¶¶ 148-158; see also <i>id</i> at ¶¶ 42-61.) Plaintiffs also allege the “HEP Agreement is dated January 1, 2009 and governs any investments signed by Plaintiffs before December 21, 2023.” (Compl., ¶ 91.) Plaintiffs further allege the “HPI Agreement is dated December 21, 2023 and governs B-1 and B-2 investments signed by Plaintiffs on or after December 21, 2023.” (Compl., ¶ 108.) Both agreements contain the same arbitration clause. Plaintiffs are not signatories to HEP and HPI Agreements. (See Block Decl., Exs. 3, 4; Compl., Exs. 2, 3.) However, each time they purchased or were granted equity interests governed by these agreements, Plaintiffs signed Exhibit B-1 and B-2 forms, which state in signing they each have “read[], understand[], and agree[] to be bound by all of the provisions of the Operating Agreement of the Company” (See Block Decl., ¶¶ 5, 6, Exs. C, D; see also Compl., ¶51.) Plaintiffs admit signing the Employment Arbitration Agreement. (Meyers Decl. ¶ 7; Matthews Decl. ¶ 6; Marfone Decl. ¶ 6.) They also admit signing B-1 and B-2 forms when the acquired equity. (See Marfone Decl. ¶¶ 13, 14, 18, 19; Matthews Decl. ¶¶ 9-14; Meyers Decl. ¶¶ 10-12, 10.) Thus, Plaintiffs do not dispute the existence of these arbitration agreements. Instead, they contend the Proprietary Information and invention Assignment Agreement (“PIIAA”) governs and supersedes the prior agreements. Plaintiffs signed the PIIAA in November 2023. (Marfone Decl. ¶ 20, Ex. 2; Matthews Decl. ¶ 15, Ex. 4; Meyers Decl. ¶ 13, Ex. 5.) The PIIAA requires Plaintiffs, as “a condition of [their] employment or continued employment” with Defendants, to not “misuse, publish or disclose to any person, firm, corporation or entity any confidential and proprietary
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		information and trade secrets of the Company.” (Marfone Decl., Ex. 2, ¶ 2(a).) The PIIAA includes a forum selection clause requiring “[a]ny and every legal proceeding” arising from the agreement be brought in California courts. (Marfone Decl., Ex. 2, § 8(h).) The PIIAA also includes an integration clause stating the PIIAA sets forth the entire agreement between the parties “relating to the subject matter herein and fully supersedes any and all prior discussions, agreements and understandings, written or oral, with respect to the subject matter herein.” (Marfone Decl., Ex. 2, § 8(i).) Plaintiffs contend the PIIAA covers the substance of this litigation because a core issue in this case is whether H&C improperly determined Plaintiffs committed employment violations by breaching the PIIAA to justify improperly withholding equity payments from Plaintiffs and triggering forced buybacks. Therefore, according to Plaintiffs, the PIIAA is directly implicated in Plaintiffs’ claims. Plaintiffs’ arguments lack merit. The PIIAA does not supersede the Employment Arbitration Agreement, HEP Agreement or the HPI Agreement because they do not pertain to the same subject matter. The subject matter of the PIIAA is protecting the company’s confidential and trade secret materials. The subject matter of the Employment Arbitration Agreement is Plaintiffs’ employment. (See Manakata Decl., Exs. A-C, ¶ 1.) The subject matter of the HEP and HPI Agreements is to “to buy, hold, receive, sell, or otherwise invest in Investments; to exercise all rights, powers, privileges, and other incidents of ownership or possession with respect to Investments held or owned by the Company.” (See Block Decl., Ex. A, ¶ 1.2; see also Ex. B, ¶1.2.) Further, while Plaintiffs mention the PIIAA in their complaint, Plaintiffs have not brought claims under it. Instead, they brought claims under the HEP and HPI Agreements alleging those agreements are valid, enforceable and Defendants breached them. (Compl., ¶¶ 147-166.) Unconscionability Plaintiffs contend the arbitration agreements are procedurally and substantively unconscionable. “[U]nconscionability has both a ‘procedural’ and a ‘substantive’ element, the former focusing on ‘oppression’ or ‘surprise’ due to unequal bargaining power, the latter on ‘overly harsh’ or ‘one-sided’ results.” (<i>Armendariz v.</i>
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	<i>Found. Health Psychcare Servs., Inc.</i> (2000) 24 Cal.4th 83, 114 (<i>Armendariz</i>.) "The prevailing view is that [procedural and substantive unconscionability] must both be present in order for a court to exercise its discretion to refuse to enforce a contract or clause under the doctrine of unconscionability." (<i>Ibid.</i>) In the employment context, the court must consider five factors to determine whether an arbitration agreement is enforceable. (<i>Armendariz, supra</i>, 24 Cal.4th at p. 102.) The agreement must: 1) provide for a neutral arbitrator; 2) provide for more than minimal discovery; 3) require the arbitrator to issue a written decision; 4) provide for the same remedies that would otherwise be available to the employee in court; and 5) not require employees to pay either unreasonable costs or any arbitrators' fees or expenses as a condition of access to the arbitration forum. (<i>Ibid.</i>) Procedurally, Plaintiffs argue the arbitration agreements are adhesion contracts which were required for Plaintiffs' employment; Plaintiffs were not told the terms were negotiable, were pressured to return the agreements promptly, and were not advised they could consult with counsel; Defendants deliberately hid the terms of the arbitration agreements; and Defendants failed to explain how the different arbitration agreements interacted. Substantively, Plaintiffs contend the arbitration agreements lack basic mutuality and fail to implement the core requirements set forth in <i>Armendariz</i>. <u>Procedural Unconscionability</u> "Procedural unconscionability addresses the circumstances of contract negotiation and formation, focusing on oppression or surprise due to unequal bargaining power." (<i>Ramirez v. Charter Communications, Inc.</i> (2024) 16 Cal. 5th 478, 492 [cleaned up].) "[A] compulsory predispute arbitration agreement is not rendered unenforceable just because it is required as a condition of employment or offered on a 'take it or leave it' basis." (<i>Lagatree v. Luce, Forward, Hamilton, & Scripps LLC</i> (1999) 74 Cal.App.4th 1105, 1127.) "[U]nder both federal and state law, an employee's rights to a jury trial and a judicial forum can be validly waived by agreement, even where the waiver is required as a condition of employment." (<i>Id.</i> at p. 1128.) "Courts have observed that when, as here, there is no other indication of oppression or surprise, the degree of procedural unconscionability of an
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		adhesion agreement is low, and the agreement will be enforceable unless the degree of substantive unconscionability is high.” (<i>Peng v. First Republic Bank</i> (2013) 219 Cal.App.4th 1462, 1470 [cleaned up].) As discussed above, California courts have rejected Plaintiffs’ argument an agreement is unconscionable merely because it requires arbitration of claims as a prerequisite to employment. Plaintiffs present no evidence they asked to modify a term and were refused, or they asked for more time to review or asked to speak to counsel and were refused. Plaintiffs have not established oppression. As to surprise, the Employment Arbitration Agreements state in bold and capital letters that, in signing the agreement, the Plaintiffs were agreeing to arbitrate any and all disputes arising from their employment and cautions the Plaintiffs not to sign until they have read the acknowledgment and agreement. (See Munakata Decl., Ex. A-C.) Plaintiffs have not established surprise. However, as to the HEP and HPI Agreements, Plaintiffs presented evidence they did not receive the HEP Agreement until well after they had signed the HEP B-1 and B-2 exhibits, and Plaintiffs had already contributed capital to their HPI investments before obtaining access to the HPI Agreement. (Matthews Decl. ¶¶ 10, 11, 13; Marfone Decl. ¶¶ 14, 17; Meyers Decl. ¶ 10.) Further, the exhibits themselves did not mention arbitration and instead merely referenced the Operating Agreements. (Block Decl., Exs. C, D.) Thus, Plaintiffs have established some surprise as to the HEP and HPI Agreements. Accordingly, Plaintiffs have established a moderate degree of procedural unconscionability as to the HEP and HPI Agreements. <u>Substantive Unconscionability</u> To show substantive unconscionability, a plaintiff must show that its terms are so one-sided as to “shock the conscience.” (<i>Prima Donna Dev. Corp. v. Wells Fargo Bank, N.A.</i> (2019) 42 Cal.App.5th 22, 38.) “[T]he California Supreme Court has confirmed that a one-sided contract is not necessarily unconscionable.” (<i>Tompkins v. 23andMe, Inc.</i> (9th Cir. 2016) 840 F.3d 1016, 1030.) Plaintiffs contend the arbitration agreements lack mutuality because when read together with the PIIAA, they create a one-sided dispute resolution scheme where claims typically brought by employees (e.g., wage and hour claims) are compelled to arbitration, whereas claims more traditionally
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		brought by employers (e.g., confidentiality and trade secret claims) are preserved for the court. The court declines to read Employment Arbitration Agreements and the HEP and HPI Agreements together with the PIIAA because there is no evidence these agreements were “made as parts of substantially one transaction”. (See <i>Silva v. Cross Country Healthcare, Inc.</i> (2025) 111 Cal.App.5th 1311, 1322 [finding the arbitration agreement must be read together with the employment agreement because they were both executed during each plaintiff’s hiring process]; see also Civ. Code, § 1642 [“[s]everal contracts relating to the same matters, between the same parties, and made as parts of substantially one transaction, are to be taken together.”].) Plaintiffs also contend the Employment Arbitration Agreements do not meet the <i>Armendariz</i> requirements because they contain no provisions affirmatively stating Plaintiffs are entitled to all remedies available in court and they do not require H&C to bear the costs unique to arbitration. However, under <i>Armendariz</i>, “an arbitration agreement may not limit statutorily imposed remedies” (<i>Armendariz, supra</i>, 24 Cal.4th at p. 103.) It does not require an arbitration agreement to affirmatively state the employee is entitled to all remedies available in court. Here, the Employment Arbitration Agreements do not limit any statutorily imposed remedies. As to fees, <i>Armendariz</i> invalidates arbitration agreements in which the employer requires the “employee to bear any type of expense that the employee would not be required to bear if he or she were free to bring the action in Court.” (<i>Armendariz, supra</i>, 24 Cal.4th at pp. 110-111.) Here, the Employment Arbitration Agreements contain no such requirement. Plaintiffs do not dispute the other <i>Armendariz</i> elements. Plaintiffs contend the HEP and HPI Agreements do not meet any of the <i>Armendariz</i> requirements. Plaintiffs’ argument fails. <i>Armendariz</i> does not apply to Plaintiffs’ breach of contract claims because they are “not based on the FEHA or a fundamental public policy that is tied to a constitutional or statutory provision.” (See <i>Giuliano v. Inland Empire Personnel, Inc.</i> (2007) 149 Cal.App.4th 1276, 1289 [finding <i>Armendariz</i> did not apply because the case concerned a contract claim for a \$5 million to \$8
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		million bonus and a \$500,000 severance payment and not a fundamental public policy].) The court therefore finds none of the arbitration agreements are substantively unconscionable, and therefore Plaintiffs cannot establish unconscionability. The case is STAYED pending arbitration. Arbitration Status Review set for 5/20/2027 at 1:30 PM. The parties are ORDERED to file a Joint Status Report 5 days prior. Clerk to give notice.
6	Boyd vs. Fernandez 30-2025-01523882-CU-PA-CJC	Motion to Strike Portions of Complaint Off calendar at request of moving party.
7	Byer vs. City of La Palma 30-2024-01394359-CU-OE-CJC	Motion for Relief from Untimely Memorandum of Costs Plaintiff's Motion for Relief from Untimely Memorandum of Costs is GRANTED. Notice of entry of judgment was served via email on 12/22/2025, but Plaintiff's counsel did not file the memorandum of costs until 2/17/2026 (57 days later) due to a calendaring error. The court rejects defendant's contention the court is limited to the 30-day extension in California Rules of Court, rule 3.1700(b)(3). Plaintiff seeks relief on grounds of inadvertence or excusable neglect. (Code Civ. Proc., § 473, subd. (b); see <i>Pollard v. Saxe & Yolles Dev. Co.</i> (1974) 12 Cal.3d 374, 381 ["In the absence of prejudice, the trial court has broad discretion in allowing relief on grounds of inadvertence from a failure to timely file a cost bill."]; see also <i>Hoover Community Hotel Development Corp. v. Thomson</i> (1985) 168 Cal.App.3d 485, 488 [limitation of time to file costs bill is not jurisdictional].) Plaintiff has demonstrated the calendaring error was the result of counsel's excusable neglect involving a new legal assistant who mistakenly calendared the memorandum of costs due at the same time as the motion for attorney fees. Defendant has not demonstrated substantial prejudice. Defendant is granted leave to file a motion to strike or tax costs within 15 days.

Motion for Attorney and Expert Witness Fees

Plaintiff's Motion for Attorney Fees and Expert Witness Fees is GRANTED in the reduced sum of \$987,265.25.

Undisputed expert fees of \$11,862.50 and undisputed paralegal fees of \$4,650.00 are GRANTED.

Plaintiff's request for attorney fees under FEHA is based on 908 hours of attorney time at rates of \$950/hour for attorney Petronelli and \$500/hour for attorney Vanderpool, plus a 1.8x multiplier enhancement, for a total of \$1,451,619.00.

A party seeking a fee award has the burden of establishing entitlement to an award, and of documenting the appropriate hours spent, and the hourly rates. (*569 East County Blvd. LLC v. Backcountry Against the Dump, Inc.* (2016) 6 Cal.App.5th 426, 432; *Lunada Biomedical v. Nunez* (2014) 230 Cal.App.4th 459, 486.) In challenging an attorney fees request, the burden falls upon the challenging party to point to specific items challenged, with arguments and citation to evidence. General claims that fees are excessive are insufficient. (*Premier Medical Management Systems, Inc. v. California Insurance Guarantee Association* (2008) 163 Cal.App.4th 550, 564.) A party cannot litigate tenaciously and then complain about the time incurred. (*Peak-Las Positas Partners v. Bollag* (2009) 172 Cal.App.4th 101, 114.)

Defendant argues the hourly rates and hours billed are excessive and a 1.8x multiplier is unwarranted. Defendant contends an overall reduction of at least 20-30% is appropriate for duplication, overstaffing, and excessive and unreasonable hours. (Opp. at 11:4-12.)

Based on the average attorney fees for employment litigation in Orange County, the complexity of this matter, and the Court's observations of the experience and skill of Plaintiff's counsel, the Court finds that an hourly rate of \$850 for attorney Petronelli and \$450 for attorney Vanderpool is reasonable.

Plaintiff's counsel exercised skill in trying the case and achieved a good result for the client even though a reverse discrimination claim by a Caucasian employee is less common. The legal and factual issues in the case were not especially novel or complex for a FEHA discrimination lawsuit, but counsel took a risk in this atypical case, defendant vehemently denied all liability (even in the face of what the court considers the undeniable reality Sergeant Koh and Captain Amend presented as less-than-credible witnesses), and the policy behind FEHA's fee-shifting statute is to attract lawyers to enforce civil rights laws with an understanding they will be paid a reasonable fee if they

		prevail. (See <i>Flannery v. Prentice</i> (2001) 26 Cal.4th 572, 582-583.) Plaintiff found skilled lawyers in this difficult case. Defendant identifies billing entries reflecting duplicative or excessive work by the two attorneys, such as both attorneys participating in the same depositions and reviewing the same deposition transcripts, 154 hours opposing summary judgment, and 40 hours related to the <i>Pitchess</i> motion. Defendant also identifies billing for clerical/administrative tasks such as preparing notices of intent to use deposition testimony, preparation of exhibit/witness lists, and witness scheduling communications, which could have been performed by a legal assistant or paralegal. Overall, although it was reasonable for two attorneys to work on this matter, the court agrees certain work was duplicative, excessive, or clerical. Therefore, the court reduces the total hours by 10%. The court also declines to award fees for the 6.5 hours billed for the instant motion. The motion was only necessary due to Plaintiff's counsel's error. Plaintiff requests a 1.8x multiplier based on factors including the contingent risk, preclusion from other employment, public interest, and quality of representation. Defendant contends that at most, any multiplier should be limited to 1.25 and should not include post-trial work because there is a reduced contingent risk at this stage. Based on the factors set out in <i>Ketchum v. Moses</i> (2001) 24 Cal.4th 1122, the Court finds a 1.65x multiplier appropriate to reflect the contingent risk of this case, preclusion of other employment, and the quality of counsel's representation which resulted in a favorable verdict for Plaintiff. The court awards attorney fees as follows: Attorney Petronelli: 619.9 hours x 90% = 557.9 x \$850/hour = \$474,215.00 Attorney Vanderpool: 289 hours x 90% - 6.5 hours for motion = 253.6 x \$450/hour = \$114,120.00 Total before multiplier: \$588,335.00 Total after 1.65x multiplier: \$970,752.75 Defendant is ORDERED to pay plaintiff attorney fees of \$970,752.75, paralegal fees of \$4,650, and expert fees of \$11,862.50, for a total of \$987,265.25. Clerk to give notice.
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8	Dang vs. Nguyen 30-2024-01403534-CU-OR-CJC	Demurrer to Second Amended Complaint The demurrer to second amended complaint of defendants Vinh The Nguyen and Van Nguyen is OVERRULED in part and SUSTAINED in part. <u>Second Cause of Action for Promissory Estoppel - OVERRULED</u> The court already addressed defendants’ arguments on the second cause of action for promissory estoppel in ruling on defendants’ motion for judgment on the pleadings on the first amended complaint. There has been no substantial change in pleading. The court will not change its prior ruling and cautions counsel to refrain from raising in subsequent motions identical issues previously ruled upon. <u>Fourth Cause of Action for Quiet Title – SUSTAINED with 10 days leave to amend</u> While Plaintiff alleges she has “tendered the full repayment of the secured amount to Freedom Mortgage” (SAC ¶ 76), the SAC does not address the \$700,000 loan from Alliance Portfolio, which was also secured by a deed of trust recorded against the property. (SAC ¶ 9.) The declaration relied on by Plaintiff purporting to show the loan was paid in full is not appropriate in opposing a demurrer. Motion to Strike Portions of Second Amended Complaint The motion to strike portions of second amended complaint of defendants Vinh The Nguyen and Van Nguyen is GRANTED in part. Plaintiff has sufficiently alleged facts supporting a prayer for specific performance concerning repayment of the two additional loans. Plaintiff has also sufficiently alleged a cause of action for fraud (i.e., intentional misrepresentation), which supports punitive damages. The motion is DENIED on these grounds. However, Plaintiff has not alleged any contract, statute or law which allows for the recovery of attorney fees or statutory damages. The motion is GRANTED on this ground. If Plaintiff chooses to amend, Plaintiff is ORDERED to file a red-lined and clean version of the amended pleading. Clerk to give notice.
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9	Rhee vs. United Wholesale Mortgage LLC 30-2025-01513641-CU-OR-CJC	Demurrer to First Amended Complaint Defendant Newrez LLC dba Shellpoint Mortgage Servicing's Demurrer to Plaintiff Thomas Rhee's First Amended Complaint is OVERRULED in part and SUSTAINED in part with 10 days leave to amend. Defendant's request for judicial notice (ROA 57) is GRANTED. <u>First cause of action for violation of the Homeowner Bill of Rights - OVERRULED</u> Plaintiff sufficiently alleges a claim pursuant to Civil Code section 2923.7. The court need not address the other theories. <u>Second cause of action for wrongful foreclosure - SUSTAINED</u> Plaintiff does not allege tender or excuse from tender. Plaintiff alleges only "Plaintiff was in active review for loss mitigation, submitted a valid listing agreement, and had substantial equity to cure the loan." (FAC ¶ 33.) <u>Third cause of action for breach of contract – OVERRULED</u> Plaintiff alleges sufficient facts to support a cause of action for breach of contract. (FAC ¶¶ 37-40.) <u>Fourth cause of action for breach of implied covenant of good faith and fair dealing - OVERRULED</u> As Plaintiff sufficiently alleges a cause of action for breach of contract, the Court OVERRULES the demurrer to the fourth cause of action as well. <u>Fifth cause of action for unfair competition – SUSTAINED</u> Plaintiff alleges he "made his last loan payment in January 2024" and "ceased payments in February 2024." (FAC ¶ 17.) As the default occurred prior to the unfair acts alleged as the basis of his Unfair Competition Law claim, Plaintiff lacks standing to bring this cause of action. <u>Sixth cause of action for declaratory relief – OVERRULED</u>
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10	Franco vs. Memo’s Scaffolding Norwalk Inc. 30-2024-01401625-CU-PO-CJC	Motion for Summary Judgment Defendant Donald Patton Construction, Inc.’s (“DPC”) motion for Summary Judgment is DENIED.

		Defendant's Objections to Plaintiff's Evidence is OVERRULED as to Objections Nos. 1-3 and SUSTAINED as to Objection No. 4. Plaintiff's Objections to Defendant's Evidence is OVERRULED as to Objection Nos. 3, 6, and 7 and SUSTAINED as to Objection Nos. 1, 2, 4 and 5 (<i>Lopez v. Univ. Partners</i> (1997) 54 Cal.App.4th 1117, 1124 ["Declarations based on information and belief are insufficient to satisfy the burden of either the moving or opposing party on a motion for summary judgment or adjudication."].) The Complaint alleges causes of action for General Negligence and Premises Liability against DPC. DPC moves for summary judgment on the grounds the <i>Privette</i> doctrine bars liability under both the negligence and premises liability claim. (See <i>Privette v. Superior Court</i> (1993) 5 Cal.4th 689, 693 ["a person who hired an independent contractor generally was not liable to third parties for injuries caused by the contractor's negligence in performing the work"].) However, the retained control exception was recognized in <i>Hooker v. Department of Transportation</i> (2002) 27 Cal.4th 198, which "held that a hirer may be liable when it retains control over any part of the independent contractor's work and negligently exercises that retained control in a manner that affirmatively contributes to the worker's injury." (<i>Gonzalez v. Mathis</i> (2021) 12 Cal.5th 29, 38 [citation omitted].) Plaintiff has established there exist triable issues of material fact over whether the retained control exception applies, because the scaffolding supplied by DPC appears to have failed. The scaffolding lacked adequate ledgers and/or was defective at the time of use, and as a result when Plaintiff gripped onto the ledger to pull himself up to ascend the scaffolding, the latch broke, causing Plaintiff to fall. (Plaintiff's Decl., ¶ 8(a).) There was no fall-protection tie-off points installed or available on or near the working level for use by Plaintiff or other Lamaison co-workers. (Plaintiff's Decl., ¶8(a).) (See <i>McKown v. Wal-Mart Stores, Inc.</i> (2002) 27 Cal.4th 219 [negligent provision of unsafe equipment.] Plaintiff to give notice.
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11	V. Lynn Hodge, as Trustee of the Plaza Del Sol Real Estate Trust Under Declaration of Trust Dated February 9, 1996, as Amended, a California Revocable Trust vs. OC Media Tower, L.P.	Motion in Limine No. 1 Continued to 5/22/2026 pending plaintiff's submission of documents for the court's in camera review.
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